

DOCKET NO. 159-R10-07-2026

STEPHEN RAY JORDAN
Petitioner

v.

FRISCO ISD
Respondent

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BEFORE THE

COMMISSIONER OF EDUCATION

STATE OF TEXAS

FRISCO ISD’S
ANSWER TO PETITION FOR REVIEW

COMES NOW, the Frisco Independent School District (“Frisco ISD,” “District,” or “Respondent”), pursuant to Texas Education Code § 7.057 and 19 TAC §157.1073(d) and (e) files this Answer to the Petition for Review filed by Stephen Jordan (hereinafter referred to as the “Petition”).

I.
Local Record Submission

1.1 In accordance with Texas Education Code § 7.057 and 19 TAC §157.1073(d) and instructions provided by the Texas Education Agency (“TEA”) by letter dated August 17, 2026, Frisco ISD certifies that it has uploaded the local record of the proceedings at issue in this appeal, including all items identified in 19 TAC § 157.1073(d), to the electronic filing system not later than 30 days after receipt of the Petitioner’s Appeal.

II.
RESPONSE TO PETITION

2.1 The District contends that the Commissioner lacks jurisdiction over this Appeal and will file an appropriate Plea to the Jurisdiction related to Respondent’s contention as soon as possible.

Subject to the preservation of those arguments, the District submits this response to Petitioner's Appeal.

A.
Standard of Review

- 2.2 The substantial evidence standard of review is “a limited standard of review” that does not allow the Commissioner to substitute his judgment for that of the board of trustees; instead, this standard “gives significant deference” to the school board. 19 TEX. ADMIN. CODE § 157.1073(h); *Railroad Comm’n of Texas v. Torch Operating Co.*, 912 S.W.2d 790, 792 (Tex. 1995). Substantial evidence is not a high standard, substantial evidence is “more than a scintilla, but the evidence may preponderate against the decision of the agency and nonetheless amount to substantial evidence” *City of Alvin v. Public Utility Comm’n of Texas*, 876 S.W.2d 346 (Tex. App.—Austin 1993, judgment set aside in accordance with settlement agreement, 893 S.W.2d 450). The issue for the Commissioner is not whether the board of trustees reached the correct conclusion, but rather whether reasonable minds could have reached the same conclusion as the agency. *Id.* The Commissioner previously described the substantial evidence standard as a “reasonableness standard.” *Kellog v. Stinton Indep. Sch. Dist.*, Docket No. 077-R1-07-2014 (Comm’r Educ. 2014).

B.
Consideration of Local Record

- 2.3 As outlined in Texas Education Code § 7.057 and 19 Texas Administrative Code § 157.1073(e), the Commissioner shall review the record of the hearing, including the oral argument before the Board. TEX. EDUC. CODE §7.057; 19 TEX. ADMIN. CODE § 157.1073.

C.
General & Specific Denial

- 2.4 The District generally denies all allegations all allegations specifically alleged by Petitioner.
- 2.5 Without waiver of Respondent's general denial, Respondent specifically denies each allegation as follows:
- a) Respondent denies the allegation that the district failed to comply with Section 1.007(b) of the Texas Education Code by failing to abide by local policy.
 - b) Respondent denies the allegation that the District violated Section 26.011(c)(6) and (c)(7) by not requiring recusal of an individual allegedly involved or subject of the grievance.
 - c) Respondent also denies the allegation that the District Section 26.011(c)(2) and (c)(3) of the Texas Education Code by failing to adopt a policy that requires an explanation of the findings, notification of the right to appeal, and the timeline for appealing.
 - d) Respondent further denies that section 26.011 of the Texas Education code related to the adoption of a grievance procedure.

III.
Prayer

- 3.1 For the reasons above, the Commissioner should deny all relief requested by Petitioner in this matter.

Respectfully Submitted,

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Certificate of Service

I certify that a copy of this pleading was served on Petitioner on September 16, 2026, in accordance with the rules of the Texas Education Agency.

Rebecca Bradley
Rebecca Bradley